

Mutual Non-Disclosure Agreement

This Mutual Non-Disclosure Agreement (this "**Agreement**") is made and entered into as of March 12, 2026 (the "**Effective Date**") by and between **Echo Labs, Inc.**, a Delaware corporation having its principal place of business at 500 Genomic Way, San Diego, California ("**Echo**"), and **Foxtrot Pharmaceuticals, plc**, a public limited company organized under the laws of England and Wales ("**Foxtrot**"). Echo and Foxtrot are each a "**Party**" and together the "**Parties**."

1. Purpose

The Parties intend to evaluate a potential strategic collaboration involving pre-clinical research, licensing, and joint development of therapeutic compounds (the "**Purpose**"). To facilitate the Purpose, each Party (as the "**Disclosing Party**") may disclose to the other (the "**Receiving Party**") sensitive proprietary information requiring strict protection.

2. Definition of Confidential Information

"**Confidential Information**" means any and all information disclosed by or on behalf of the Disclosing Party to the Receiving Party, whether disclosed orally, in writing, electronically, by demonstration, by inspection of facilities or samples, or by any other means, and regardless of whether marked or designated as "Confidential" at the time of disclosure. Without limiting the foregoing, Confidential Information specifically includes:

- (a) Research and development data, including pre-clinical and clinical study results, assays, screening data, structure-activity relationships, and target validation data;
- (b) Compositions of matter, formulations, manufacturing processes, scale-up protocols, and chemistry/manufacturing/controls (CMC) information;
- (c) Intellectual property strategies, patent application drafts, regulatory submission drafts, and freedom-to-operate analyses;
- (d) Commercial information including business plans, financial models, pricing strategies, market analyses, customer and partner lists, supplier information, and personnel matters;
- (e) Source code, algorithms, software architectures, and computational models used in drug discovery or development;
- (f) Trade secrets within the meaning of applicable law; and
- (g) Any analyses, notes, summaries, or other materials prepared by the Receiving Party that incorporate or are derived from any of the foregoing.

Confidential Information does **not** include information that: (a) is or becomes generally available to the public through no breach of this Agreement; (b) was in the Receiving Party's

lawful possession prior to disclosure and not subject to any prior confidentiality obligation; (c) is independently developed by the Receiving Party without reference to the Confidential Information, as demonstrated by competent written records; or (d) is rightfully obtained from a third party not in breach of any confidentiality obligation.

3. Obligations of Receiving Party

The Receiving Party shall protect the Confidential Information using **at least the same degree of care that it uses to protect its own confidential and proprietary information of similar nature and importance**, but in no event less than reasonable care. The Receiving Party shall use the Confidential Information solely in furtherance of the Purpose and for no other purpose, and shall not reverse-engineer, decompile, disassemble, or attempt to derive the composition, source code, or underlying ideas of any Confidential Information.

4. Permitted Disclosures

The Receiving Party may disclose Confidential Information only to its **employees, professional advisors (including attorneys, accountants, and financial advisors), and Affiliates** who have a need to know such information for the Purpose and who are bound by written confidentiality obligations no less restrictive than those of this Agreement. "**Affiliate**" means any entity that directly or indirectly controls, is controlled by, or is under common control with a Party, where "control" means ownership of more than fifty percent (50%) of the equity interests. The Receiving Party shall be responsible and liable for any breach of this Agreement by any such recipient.

Disclosures compelled by law, regulation, or judicial or administrative process are permitted, provided that the Receiving Party gives the Disclosing Party prompt written notice (to the extent legally permissible) and reasonably assists the Disclosing Party in seeking confidential treatment or a protective order.

5. Term and Survival

This Agreement shall remain in effect for a period of **five (5) years** from the Effective Date. The Receiving Party's obligations of confidentiality and non-use shall survive for the term of this Agreement and continue thereafter as follows: (a) with respect to information that constitutes a trade secret under applicable law, **for so long as such information continues to qualify as a trade secret**; and (b) with respect to all other Confidential Information, for a period of five (5) years following expiration or termination.

6. Return or Destruction

Within thirty (30) days after the Disclosing Party's written request or upon expiration or termination of this Agreement, the Receiving Party shall, at the Disclosing Party's option, either return or destroy all Confidential Information, including any copies, electronic backups, and derivative materials. The Receiving Party shall provide a written certification of destruction signed by an officer. Notwithstanding the foregoing, the Receiving Party may retain Confidential Information to the extent required by applicable law or regulation, or as stored on automated backup systems in the ordinary course, subject to continuing confidentiality obligations under this Agreement.

7. Equitable Remedies

The Parties acknowledge that money damages may be insufficient to remedy any breach of this Agreement, and that the non-breaching Party shall be entitled to seek injunctive and other equitable relief, including specific performance, without the requirement to post any bond or other security, in addition to any other remedies available at law or in equity.

8. Governing Law and Forum

This Agreement is governed by the laws of the State of Delaware, without regard to its choice-of-law principles. The Parties consent to the exclusive jurisdiction and venue of the state and federal courts sitting in Delaware for any action arising hereunder.

9. Miscellaneous

No Implied License. No license under any patent, trademark, copyright, or other intellectual property right is granted or implied by this Agreement.

Entire Agreement; Amendments. This Agreement constitutes the entire agreement of the Parties concerning the subject matter hereof and supersedes all prior negotiations and understandings. Amendments must be in writing and signed by both Parties.

Assignment. Neither Party may assign this Agreement without the prior written consent of the other Party, except to an Affiliate or to a successor in interest in a merger, acquisition, or sale of substantially all assets.

IN WITNESS WHEREOF, the Parties have executed this Agreement as of the Effective Date.

ECHO LABS, INC.	FOXTROT PHARMACEUTICALS, plc
By: _____	By: _____
Name: Dr. Anika Patel	Name: Jonathan Whitfield

ECHO LABS, INC.	FOXTROT PHARMACEUTICALS, plc
Title: Chief Scientific Officer	Title: Head of Business Development